

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkxwckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JONATHON COLLIS,

Petitioner

VS.

JUSTIN K. O'NEILL,

Respondent

) Case Number: FLD-22-396898

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) The parties are Petitioner Jonathon Collis (Father) and Respondent Justin K. O'Neill (Mother).

There is one minor child subject to this proceeding: Juniper Collis-O'Neill (DOB: 04/17/15).

2) On February 23, 2026, Mother filed a Request for Order seeking to modify the existing child custody and visitation orders. Father presently has sole legal and sole physical custody. (See Child Custody and Visitation Stipulation and Order filed 03/07/24.) Mother has parenting time with the minor child every other week from Thursday after school until Saturday at 5:00 p.m. and on alternate weekends (when there is no overnight parenting time) Mother picks up Juniper Friday after school for two hours of parenting time, including walking her home. (See 04/15/25 Findings and Order After Hearing (FOAH).) Mother requests the following modifications:

a. Joint legal and joint physical custody; and

b. Week on/week off schedule.

3) On March 11, 2026, Mother filed a Proof of Personal Service indicating Father was personally served with her motion on March 30, 2026 at 9:00 a.m.

1 4) On March 30, 2026, the parties appeared at Readiness Calendar and the Court referred them to
2 Family Court Services (FCS) Mediation on April 21, 2026 and set a return hearing for May 5,
3 2026.

4 5) On April 27, 2026, Mother filed a supplemental declaration, which has been read and considered
5 by this Court.

6 6) As of April 30, 2026, Father had not filed any responsive pleadings.

7 **B. Findings and Order**

8 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
9 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
10 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
11 child(ren) is the United States.

12 2) Mother's request to modify child custody to joint legal and joint physical custody is GRANTED.

13 3) Mother's request to modify the existing parenting plan is GRANTED.

14 4) Commencing May 10, 2026, Mother and Father's parenting time with the minor child shall occur
15 on a week on/week off schedule. Exchanges of the minor child shall be every Sunday at 5:00 p.m.

16 5) Mother's first weekend will start on Sunday, May 10, 2026 at 5:00 p.m., and continue through
17 Sunday, May 17, 2026 at 5:00 p.m., at which point, Father's week will commence. The parties
18 shall alternate each week, thereafter.

19 6) All prior orders, not in conflict with the orders made herein, shall remain in full force and effect.

20 7) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

PEARL BROWN,

Petitioner

VS.

IDRIES AZIZ-PEARSON,

Respondent

) Case Number: FDI-16-785976

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Pearl Brown (Mother) and Respondent Idries Aziz Pearson (Father).
There is one minor child subject to this proceeding: Leamon Aziz-Pearson (DOB: 12/21/10).
- 2) On February 18, 2026, Father filed a Request for Order seeking modification of the existing child custody and visitation orders. The existing order is from April 18, 2023 and provides Mother sole legal and sole physical custody and Father parenting time every other week from Friday after school until Thursday. Father requests:
 - a. Sole legal and sole physical custody of the minor child; and
 - b. Supervised visitation to Mother from Friday after school until Monday morning drop-off at school.
- 3) On March 23, 2026, the Court held a readiness hearing and referred the parties to Family Court Services (FCS) Mediation on April 3, 2026 and set a return hearing on May 5, 2026.
- 4) Mother did not file an opposition to Father's motion.

1 **B. Findings and Order**

2 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
3 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
4 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
5 child is the United States.

6 2) Father's request for sole legal and sole physical custody is GRANTED.

7 3) Effective 5/8/26, Mother's parenting time with the minor child shall be unsupervised and occur
8 every Friday after school to Monday morning drop off at school.

9 4) All prior orders, not in conflict, shall remain in full force and effect.

10 5) The Court will prepare the Findings and Order After Hearing.

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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAVID JOHN NICHOLSON,	)	Case Number: FDI-21-794960
Petitioner	)	Hearing Date: May 5, 2026
VS.	)	Hearing Time: 9:00 AM
ABBY BREITMAN NICHOLSON,	)	Department: 403
Respondent	)	Presiding: BOBBY P. LUNA

OTHER REVIEW HEARING; ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

This hearing was vacated by agreement of the parties. The Court was advised that the parties will be submitting a Stipulation and Order memorializing such an agreement. **No appearances are required on 5/5/26.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHAEL SHAO,

Petitioner

VS.

XIU HONG LI,

Respondent

) Case Number: FDI-25-801214

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: SPOUSAL SUPPORT, ATTORNEY FEES, AND RESTAURANT
PROCEEDS

TENTATIVE RULING

On the Court's own motion, Respondent Xiu Hong Li's Request for Order filed 2/10/26 is **continued to 5/7/26 at 9 AM in Dept. 403** to be heard on the same date as Petitioner Michael Shao's Request for Order filed 1/5/26. **No appearances are required on 5/5/26.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMIT MEHTA,

Petitioner

VS.

COURTNEY MEHTA,

Respondent

) Case Number: FDI-25-802312

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF VISITATION (PARENTING TIME, CONSOLIDATION
OF PROCEEDINGS; REQUEST FOR ORDER RE: SANCTIONS UNDER FC SECTION 271 AND
CCP SECTION 128.5; FINDING OF VIOLATION OF TDVRO

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

I. Father's Request for Order Filed 2/23/26

A. Procedural History

- 1) The parties are Petitioner Amit Mehta (Father) and Respondent Courtney Mehta (Mother). There is one minor child subject to this proceeding: Aadi Caleb Mehta (DOB: 10/22/23).
- 2) On 2/23/26, Father filed a Request for Order seeking modification of visitation and consolidation of cases. The existing parenting plan was established in related case no. FDV-25-818798. Pursuant to the existing order, Father has parenting time with the minor child on Tuesdays and Thursdays from 4:00 p.m. – 7:00 p.m. and on Saturdays from 11:00 a.m. – 2:00 p.m., with exchanges occurring at the Stonestown Mall (main entrance near Peet's Coffee). Father requests additional parenting time and consolidation of the domestic violence action (FDV-25-818798) into the dissolution action (FDI-25-802312).

- 3) On 3/3/26, Mother filed a Responsive Declaration wherein she asks the Court to deny the relief requested by Father.
- 4) On 3/30/26, the Court conducted a readiness hearing during which the matter was referred to Family Court Services (FCS) Mediation on April 21, 2026 and set for return hearing on May 5, 2026.
- 5) On 4/28/26, Father filed “Reply Declaration of Petitioner in Support of RFO for Modification of Parenting Time,” which has been read and considered by the Court.
- 6) On 4/28/26, Father filed a “Reply Declaration of Andrea Palash in Support of Petitioner’s RFO for Modification of Parenting Time,” which has been read or considered by the Court.
- 7) On 5/2/26, Father filed “Petitioner’s Opposition to Respondent’s Motion to Strike Petitioner’s Reply Pleadings,” which has been read and considered by the Court. The Court notes it did not receive a “motion to strike” from Respondent.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) Father’s request for additional parenting time with the minor child is DENIED. The Court will not consider an increase in Father’s parenting time until the Request for Domestic Violence Restraining Order (DVRO) has been adjudicated.
- 3) Father’s request that the Court consolidate related case no. FDV-25-818798 into case no. FDI-25-802312 is GRANTED. Case no. FDI-25-802312 shall be the lead case; any and all future pleadings shall be filed in the lead case number.

II. Mother’s Request for Order Filed 2/13/26 in Case No. FDV-25-818798

A. Procedural History

- 1) On 2/13/26, Mother filed a Request for Order seeking a finding that Father violated the Temporary Restraining Order (TRO) by acting in concert with third parties to threaten Mother. Mother seeks \$10,000 total in Family Code section 271 sanctions (or half (\$5,000) awarded under Code of Civil Procedure section 128.5). Mother asserts that Father coordinated with his parents to

1 threaten Mother with criminal and civil consequences because Mother submitted transcripts of
2 recorded conversations between Father's parents as evidence in her Request for Domestic
3 Violence Restraining Order (DVRO). Mother attached as Exhibit 1 a letter from attorney Douglas
4 Rappaport, who represents Father's parents, requesting the transcripts be removed from the Court
5 record, and not be used in any fashion, as his clients were unlawfully recorded in their own home
6 in violation of Penal Code section 632. The matter was set for hearing on 5/5/26.

7 2) On 5/13/26, counsel for Mother filed a supportive declaration and declaration substantiating her
8 request for attorney's fees sanctions.

9 3) On 4/22/26, Father filed a Responsive Declaration in opposition to Mother's Request for Order.
10 Father states that the parties and Father's parents all resided together in San Francisco for periods
11 of months at a time over the course of five years. Father asserts that Mother recorded Father's
12 parents in their own bedroom without notice and then attached transcripts of these recordings to
13 her Request for DVRO. Father states that it is his understanding that both parties were asked – via
14 a letter from his parent's counsel – to remove any recording of his parent's private conversations
15 from the record.

16 4) On 4/22/26, Father filed objections to and a motion to strike portions of Mother's declaration and
17 the declaration of Mother's counsel.

18 5) On 4/22/26, Father filed a Memorandum of Points and Authorities. It is Father's position that
19 Mother's motion concerns the action of non-parties and their pursuit of legitimate legal claims to
20 protect privacy interests. Father asserts that the letter simply states the recordings were obtained
21 in contravention of Penal Code section 632 and requests the transcripts be removed from the
22 record. Father argues he is entitled to sanctions under Family Code section 271 or Code of Civil
23 Procedure section 128.5(f).

24 6) On 4/22/26, counsel for Father filed a declaration substantiating his request for \$18,310 to
25 \$20,970 in attorney's fees sanctions.

26 **B. Findings and Order**

27 1) Preliminarily, the Court rules on Father's objections to and motion to strike portions of Mother's
28 declaration and the declaration of Mother's counsel filed 4/22/26 as follows:

29 a. Objections to declaration of Mother:

- i. Father's objection NO. 1 is SUSTAINED. The Court will consider this request stricken.
- ii. Father's objection NO. 2 is SUSTAINED. The Court will consider this request stricken.
- iii. Father's objection NO. 3 is OVERRULED.
- iv. Father's objection NO. 4 is OVERRULED.
- v. Father's objection NO. 5 is SUSTAINED. The Court will consider this request stricken.
- vi. Father's objection NO. 6 is OVERRULED.
- vii. Father's objection NO. 7 is SUSTAINED. The Court will consider this request stricken.
- viii. Father's objection NO. 8 is OVERRULED.
- ix. Father's objection NO. 9 is OVERRULED.
- x. Father's objection NO. 10 is OVERRULED.
- xi. Father's objection NO. 11 is OVERRULED.
- xii. Father's objection NO. 12 is SUSTAINED. The Court will consider this request stricken.
- xiii. Father's objection NO. 13 is SUSTAINED. The Court will consider this request stricken.

b. Objections to declaration of Mother's counsel:

- i. Father's objection NO. 1 is SUSTAINED. The Court will consider this request stricken.
- ii. Father's objection NO. 2 is SUSTAINED. The Court will consider this request stricken.
- iii. Father's objection NO. 3 is OVERRULED.
- iv. Father's objection NO. 4 is SUSTAINED. The Court will consider this request stricken.
- v. Father's objection NO. 5 is SUSTAINED. The Court will consider this request stricken.

1 vi. Father's objection NO. 6 is OVERRULED.

2 vii. Father's objection NO. 7 is SUSTAINED. The Court will consider this request
3 stricken.

4 viii. Father's objection NO. 8 is SUSTAINED. The Court will consider this request
5 stricken.

6 ix. Father's objection NO. 9 is SUSTAINED. The Court will consider this request
7 stricken.

8 2) Mother's request for the Court to find that Father violated the TRO is DENIED. The Court agrees
9 with Father that his parents are entitled to pursue legitimate legal claims to protect their privacy
10 interests. Moreover, the Court finds that Father simply informing his parents that transcripts of
11 recordings of their private conversations were submitted as evidence in DVRO action is not a
12 violation of the TRO. Notably, both parties received the letter from Father's parent's counsel,
13 which requests the transcripts of private conversations between the parties be removed from the
14 record and not used by either party.

15 3) Accordingly, Mother's request for sanctions is DENIED.

16 4) The Court, however, finds good cause to GRANT Father's request for Family Code section 271
17 sanctions in the amount of \$5,000. The Court finds that Mother engaged in litigation conduct that
18 frustrates the policy of promoting settlement in family law cases by filing the instant Request for
19 Order. Mother shall pay this balance in full by 6/5/26.

20 5) Counsel for Father shall prepare the Findings and Order After Hearing.

21 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
22 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
23 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
24 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
25 proposed order after hearing directly to the court. Failure to submit the order after hearing within
26 10 days may allow the other party to prepare a proposed order and submit it to the court in
27 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANGEL RUBIO CERDA,

Petitioner

VS.

JUANA RODRIGUEZ JIMENEZ,

Respondent

) Case Number: FDI-26-802536

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF REQUEST FOR ORDER: CHILD CUSTODY, VISITATION
(PARENTING TIME), SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

This hearing was vacated by agreement of the parties pursuant to a Stipulation and Order signed by the
Court on 5/4/26. **No appearances are required on 5/5/26.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALENA CALDER,

Petitioner

VS.

LUDWIG C. CALDER,

Respondent

) Case Number: FDV-25-818613

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

- 1) The parties are Petitioner Alena Calder (Mother) and Respondent Ludwig C. Calder (Father).
- 2) On 2/18/26, Mother filed an Order to Show Cause and Affidavit for Contempt alleging that Father violated Court orders issued 12/3/25 by suspending Mother's supervised visitations and 9/2/25 by denying Mother access to the children's medical records.
- 3) On 2/27/26, Mother filed a Proof of Personal Service indicating the Order to Show Cause and Affidavit for Contempt filed 2/18/26 was personally served on Father on 2/26/26.
- 4) On 4/28/26, Father filed an Income and Expense Declaration indicating he earns an average monthly salary of \$1,050, receives \$1,110 in monthly public assistance, earns \$600 in monthly self-employment income, has \$5,000 in personal property assets, and pays \$17,220 in average monthly expenses.
- 5) **The parties are ordered to appear.** Father shall be prepared to inform the Court whether he would like the Court to appoint contempt counsel to represent him in this contempt action. If Father would like contempt counsel appointed to him, the Court will set a future hearing date for

Father's arraignment. If Father does not want contempt counsel to be appointed to him, the Court will arraign Father at the 5/5/26 hearing and set a future trial date.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

FLOR MARQUEZ,

Petitioner

VS.

CRYSTAL MARQUEZ,

Respondent

) Case Number: FDV-25-818782

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS, SEAL MEDICAL
RECORDS/MILITARY IDENTIFICATION, AWARD SANCTIONS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Flor Bermudez-Marquez and Respondent Crystal Marquez.
- 2) On 2/10/26, Respondent filed a Request for Order seeking an order sealing medical and military records attached as Exhibits C and D to Petitioner's Supplemental Declaration filed 1/5/26 and Family code section 271 sanctions. Respondent asserts that Petitioner publicly filed Respondent's confidential Veteran's Affairs (VA) medical records and unredacted military identification card, which include private medical information and highly sensitive information. The matter was set for hearing on 5/5/26.
- 3) On 2/10/26, Respondent filed an Income and Expense Declaration.
- 4) On 4/28/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for Order. Petitioner asserts that this motion is duplicative to the motion on calendar on 6/4/26 (i.e., Respondent's Request for Order filed 2/4/26) and the substantive answer was filed in response to the motion on calendar on 6/4/26.

1 5) The Court notes the following:

2 a. On 2/4/26, Respondent filed an identical motion to the motion filed 2/10/26 as set forth
3 above. The matter was set for hearing on 4/28/26 and continued to 6/4/26 at Petitioner's
4 request.

5 b. On 4/14/26, Petitioner filed a Responsive Declaration in opposition to Respondent's
6 request for sanctions. Petitioner asserts that the "VA Rating Decision and Veteran ID are
7 directly relevant to Respondent's income and financial circumstance, which are squarely
8 at issue in both this DVRO proceedings and the parallel dissolution action." Petitioner
9 further asserts that Respondent's request for sanctions is procedurally defective.

10 Petitioner does not oppose Respondent's request to seal.

11 **B. Findings and Order**

12 1) The Court finds a party's request to seal court records can easily conflict with the public's
13 significant interest in accessing the records of proceedings before their courts.

14 2) The First Amendment provides the public the right of access to ordinary civil trials and
15 proceedings. (*NBC Subsidiary (KNBC-TV), Inc. v. Super. Ct.* (1999) 20 Cal.4th 1178, 1212
16 (KNBC-TV).)

17 3) This right of access applies to divorce proceedings in the same way it applies to ordinary civil
18 cases. (*In re Marriage of Burkle* (2006) 135 Cal.App.4th 1045, 1070.)

19 4) These rights are protected through the Rules of Court and cannot be modified by agreement.
20 "Unless confidentiality is required by law, court records are presumed to be open." (Rules of
21 Court, rule 2.550, subd. (c).) The court must not permit a record to be filed under seal based
22 solely on the agreement or stipulation of the parties. (Rules of Court, rule 2.551, subd. (a).)

23 5) The Rules of Court require specific factual findings. "The court may order that a record be filed
24 under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that
25 overcomes the right of public access to the record; (2) The overriding interest supports sealing the
26 record; (3) A substantial probability exists that the overriding interest will be prejudiced if the
27 record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive
28 means exist to achieve the overriding interest." (*Id.* at subd. (d); see also *KNBC-TV, supra*, at
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1217-18.) (See also *In re Marriage of Burkle* (2006) 135 Cal.App.4th 1045 [setting forth a four part test the moving party must overcome for a record to be filed under seal].)

- 6) These findings must be backed by factual proof. “A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” (Id. at rule 2.551, subd. (b)(1).)
- 7) According to the rules above, the Court is required to identify facts, which are supported by an evidentiary showing to issue an order sealing records. This includes facts supporting an interest in sealing the records that overrides the public’s interest in accessing them. (See *In re Marriage of Nicholas* (2010) 186 Cal.App.4th 1566, 1576.)
- 8) In the instant matter, Respondent requests an order sealing medical and military records attached as Exhibits C and D to Petitioner’s Supplemental Declaration filed 1/5/26, which include Respondent’s confidential Veteran’s Affairs (VA) medical records and unredacted military identification card, containing private medical information and highly sensitive information.
- 9) Given that Respondent’s request pertains to medical records and sensitive identification information, the Court finds the proposed sealing meets the required burden and the sealing of Exhibits C and D to Petitioner’s Supplemental Declaration filed 1/5/26 is narrowly tailored to specific identifying information.
- 10) Accordingly, Respondent’s request for an order for sealing is GRANTED.
- 11) Respondent’s Request for Family Code section 271 sanctions is DENIED.
- 12) The hearing on 6/4/26 is VACATED.
- 13) Counsel for Respondent shall prepare the Findings and Order After Hearing.
- 14) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).